

Rousseau and Modern India - Eight Decades of a Large Democracy

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Philosopher Jean Jacques Rousseau argued that democracy requires a small, homogeneous, virtuous people. India is none of these, yet has been a democracy for over seven decades. This essay argues that India's Constitution and independent institutions have done work Rousseau did not foresee. However, its civil service has behaved exactly as he warned an unaccountable administrative class would.

In *The Social Contract*, Rousseau provides his view on what kind of society best suits a democracy. A democracy is optimal for a small, homogeneous state. He says that only a country of Gods can be ruled democratically, as it is a system too perfect for men. Modern India is none of this - yet it has been a democracy since its independence in 1947. Though India is said to have a robust constitution, it is no secret that its politics has been taking advantage of the divisions among people along the lines of religion and caste. In this article, I attempt to theorise what Rousseau missed.

What Rousseau Valued

First, it's worth knowing what he valued. In Rousseau's view, a state's stability is entirely dependent on its *moeurs* - the unwritten customs and morals of the people. The *moeurs* are the foundation of the "[general will](#)", which is defined as the collective will of the people. The constitution is considered the document that lays down the framework to enforce the general will. However robust it may be, a sovereign (the state in which laws are enforced) that does not embody the general will and instead harbours private interests (the private will) is bound to fall. A well-written constitution can only prolong the impending decay.

Rousseau claims that a state that can successfully implement democracy (complete power to the people to ensure the general will is carried out) requires a homogeneous population and a small area. The former is to ensure a shared view of what the "common good" should be, and the latter to ensure that sovereign power is not delegated to too many public officials, such that private wills dictate decision-making. In Rousseauian theory, this does not suit India. So what is different?

The Constitutional Framework and its Spirit

India's founding fathers intended to give power to the people - the first words we read in the Preamble say "WE, THE PEOPLE OF INDIA". In Rousseauian terms, this is the general will being adhered to. The Constitution protects the fundamental rights - the right to freedom of expression, equality, and religion. It fundamentally upholds [civic nationalism](#).

The Constitution makes it clear that everyone is entitled to a set of fundamental rights that cannot be taken away, and everyone is to be treated equally. It was drafted at a time when India was rife with social and economic inequalities along with communal and caste conflicts. It provided the rules and framework to eliminate these inequalities and empower the individual, and [directive principles](#) to create a fair society.

Independent Institutions

Rousseau does not expound on the viability of the independent institutions within a democratic framework. These institutions are the protectors and enforcers of the law - they are the guardians of the general will. These are the Election Commission, district courts, high courts and the Supreme Court. The Supreme Court's [basic structure doctrine](#) is testament to the fact that efforts by the Parliament to alter the nature of fundamental rights and basic freedoms can be struck down.

Since independence, these organisations have, overall, not been politically weaponised. While it is abundantly clear that attempts have been made throughout independent India's history, these institutions have not been subject to a hostile takeover by the Government, except during the Emergency period, which saw extreme curtailment of civil liberties. The Supreme Court ruled that the [Right to Life](#) could be suspended during an Emergency - this was the deeply unpopular ADM Jabalpur v. Shivkant Shukla ruling in 1976, which was overturned in 2017.

While India has not done a perfect job of enforcing the general will, it has done just enough to ensure the private will, or any particular political ideology contrary to equality and secularism, does not usurp power.

The Leisure Tradeoff

I will offer another possibility, which cannot be proven, but I believe it is important. It is that modern citizens accept a democratic system with less participation.

Rousseau hails Rome's frequent public assemblies (according to him, these assemblies were the public enacting or changing their general will). However, it is clear that this is simply not possible today, and for all the vulnerabilities that arise with representative elections, it remains the only feasible way to practice democracy. Rousseau does realise that Romans were able to concern themselves with problems of the state and the general will frequently because they had a lot of leisure time - it was a period where slaves did all the work, and the populace could deliberate on other things. In any country, people have work to do. They have a livelihood, and a family to support. Therefore, frequent mass assemblies to deliberate on the general will are impractical today.

This realisation might prompt a society to adjust to a flawed democracy - as long as they deem elections are free and fair, their fundamental rights are not compromised, and the spirit of democracy is safe, the general will is enforced. This is not a perfect system, but given the constraints, I think the populace would accept this arrangement. Of course, if this were true, it is proof that we are willing to tolerate corruption and abuse of power at the cost of ordinary citizens. But the system to punish these people still exists; it is not entirely compromised. Is it bound to remain like this?

What the Future Holds

Where do I see the state in the near future? As long as the independent institutions remain independent, it should be fine. However, India's politics is still concerned with leveraging social and religious inequalities. Rather than creating action plans to equalise society, there only seems to be political discourse on how to stoke more division among the electorate. This mechanism will fail in the long run because the independent institutions are constantly pushing against worsening systemic inequalities, rather than moving *towards* equality. There is a difference between the two - defending against undemocratic policies is not the same as advancing democratic ideals.

I have to be clear here - I am not claiming that the state will collapse. I am claiming that if India's politics continues like this, then the Government will fail in doing its primary job - adhering to the general will. Real issues will take a back seat, while factional talking points will receive most of the spotlight.

The insulation that has kept the courts and Election Commission largely independent is also the reason why the civil services have operated with impunity and are a roadblock to growth and development. It has also made red tape and corruption synonymous with endemic issues in independent India.

What Happens When Colonial Systems are Left in Place

It is now worth examining India's civil services to realise the consequences of giving an independent institution, the executive arm of the country, too much power. Why our decision-makers thought it would be pragmatic to move forward with the execution arm whose sole purpose was to keep the population subservient to the Raj, I do not know.

Rousseau distinguished between the *sovereign* (the active form of the state) and the *magistrates* (administrative officials responsible for executing the general will), and warned that this administrative class could pursue its private will. The Indian civil service is the manifestation of Rousseau's concerns. Its institutional protection incentivises public service officials to [pursue private wills](#). Section 197 (1) of the Code of Criminal Procedure (CrPC) required prior Government sanction before prosecuting certain public service officials. The consequence of such kinds of insulation, I believe, is corruption and red tape. If the civil services were to undergo major reform in the future, the primary objective should be to encourage lateral entry and more accountability. A positive development is the replacement of the CrPC by the Bharatiya Nagarik Suraksha Sanhita. [Section 218](#) states that the sanction request is deemed approved if the Government does not respond within 120 days of the request.

Independent India began as an apparent contradiction to Rousseau's views on democracy. However, it has worked around his concerns by having a Constitution and independent institutions that have held together a nation that would have been consumed by social and demographic strife. The Constitution not only promotes equality and civic nationalism, but provides directive principles for the future. However, the magistrate class threatens the country's development by pursuing private interests at the cost of the general will, which can be effectively implemented only if its guardians are protected and its executors are held accountable.